

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Thomas Juliano	Team: Squad #06	CCRB Case #: 202003715	☒ Force	☒ Discourt.	☒ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Friday, 05/29/2020 12:00 AM, Friday, 05/29/2020 7:34 PM, Wednesday, 10/28/2020 10:02 AM	Location of Incident: Barclays Center	18 Mo. SOL 5/4/2022	Precinct: 78		
Date/Time CV Reported Sat, 05/30/2020 7:47 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sat, 05/30/2020 7:47 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. SGT Sindy Sanchez	00546	939761	SRG 2
3. POM Kyle Calenda	05856	963426	C A B
4. An officer			
5. SGT Kerin Quinn	02406	954746	SRG 4
6. CPT Joseph Taylor	00000	924542	SRG 3
7. SGT Keith Hockaday	00986	940263	SRG 4
8. SGT Brian Verkay	02358	935930	SRG 1
9. POM Anthony Miranda	02240	965797	042 PCT
10. POM Frank Aliberti	30222	956377	072 PCT
11. POM John Errico	01250	960502	069 DET

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Angel Carrasquillo	01569	941506	SRG 2
2. POF Sandra Gonzalez	14838	961793	SRG 2
3. POM Blaise Christoforatos	22736	962317	067 PCT
4. POM Marcio Granodeoro	12282	965733	067 PCT
5. POM Christophe Pena	18174	968705	042 PCT
6. AC Jeffrey Maddrey	00000	899501	PBBN
7. POM Javaid Hussain	31794	965203	067 PCT
8. SGT Marcin Steckiewicz	00412	955529	DIS CTL

Witness Officer(s)	Shield No	Tax No	Cmd Name
9. SGT Timothy Geary	03486	945680	104 PCT
10. POF Nitchell Cruz	09845	936410	108 PCT
11. POM Franz Zabala	08624	939730	SRG 1
12. POM Julio Ramos	18554	962043	009 PCT
13. CPT Luigi Carrubba	00000	925035	SRG 5
14. LT Matthew Oetting	00000	949412	PBBS
15. DT1 Joseph Gigante	00822	926878	PBBS
16. POM Christian Garcia	04233	961777	084 PCT
17. COD Terence Monahan	00000	876747	CD OFF
18. POM Michael Lisante	02021	954070	INT CIS

Officer(s)	Allegation	Investigator Recommendation
A . POM Kyle Calenda	Force: At the Barclays Center in Brooklyn, Police Officer Kyle Calenda struck § 87(2)(b) with an asp.	A . Substantiated
B . SGT Keith Hockaday	Abuse: At the Barclays Center in Brooklyn, Sergeant Keith Hockaday threatened § 87(2)(b) with the use of force.	B . Exonerated
C . SGT Brian Verkay	Force: At the Barclays Center in Brooklyn, Sergeant Brian Verkay used physical force against § 87(2)(b)	C . Exonerated
D . POM Frank Aliberti	Force: At the Barclays Center in Brooklyn, Police Officer Frank Aliberti used physical force against individuals.	D . Exonerated
E . POM John Errico	Force: At the Barclays Center in Brooklyn, Police Officer John Errico used physical force against an individual.	E . Exonerated
F . SGT Keith Hockaday	Abuse: At the Barclays Center in Brooklyn, Sergeant Keith Hockaday threatened § 87(2)(b) with the use of force.	F . Exonerated
G . SGT Keith Hockaday	Force: At the Barclays Center in Brooklyn, Sergeant Keith Hockaday used physical force against § 87(2)(b)	G . Exonerated
H . CPT Joseph Taylor	Force: At the Barclays Center in Brooklyn, Captain Joseph Taylor used physical force against § 87(2)(b)	H . Exonerated
I . CPT Joseph Taylor	Abuse: At the Barclays Center in Brooklyn, Captain Joseph Taylor damaged § 87(2)(b) property.	I . Exonerated
J . CPT Joseph Taylor	Force: At the Barclays Center in Brooklyn, Captain Joseph Taylor struck § 87(2)(b) with a baton.	J . Unsubstantiated
K . CPT Joseph Taylor	Discourtesy: At the Barclays Center in Brooklyn, Captain Joseph Taylor acted discourteously toward § 87(2)(b)	K . Substantiated
L . CPT Joseph Taylor	Discourtesy: At the Barclays Center in Brooklyn, Joseph Taylor spoke discourteously to § 87(2)(b)	L . Substantiated
M . An officer	Force: At the Barclays Center in Brooklyn, an officer used physical force against § 87(2)(b)	M . Officer(s) Unidentified
N . SGT Kerin Quinn	Force: At the Barclays Center in Brooklyn, Sergeant Kerin Quinn used physical force against § 87(2)(b)	N . Exonerated
O . SGT Kerin Quinn	Discourtesy: At the Barclays Center in Brooklyn, Sergeant Kerin Quinn spoke discourteously to § 87(2)(b)	O . Exonerated
P . SGT Sindy Sanchez	Force: At the Barclays Center in Brooklyn, Sergeant Sindy Sanchez used pepper spray against Individuals.	P . Substantiated

Officer(s)	Allegation	Investigator Recommendation
Q . POM Anthony Miranda	Discourtesy: At the 1st Precinct stationhouse, Police Officer Anthony Miranda spoke discourteously to § 87(2)(b)	Q . Unsubstantiated
R . Officers	Force: At the Barclays Center in Brooklyn, officers struck individuals with batons.	R . Officer(s) Unidentified
S . An officer	Force: At the Barclays Center in Brooklyn, an officer used physical force against an individual.	S . Officer(s) Unidentified
T . CPT Joseph Taylor	Untruthful Stmt.: Captain Joseph Taylor provided a false official statement to the CCRB.	T . Substantiated
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		

Case Summary

On May 30, 2020, § 87(2)(b) a reporting non-witness, filed this complaint with the CCRB via the online website. On June 3, 2020, § 87(2)(b) filed a duplicate complaint via the CCRB's online website. This case was placed on the Sensitive Case List due to a video of the incident obtaining 12 million views on Twitter.

On May 29, 2020, at 7:34 p.m., § 87(2)(b) § 87(2)(b) § 87(2)(b) and § 87(2)(b) were at The George Floyd Protest behind the Barclay's Center subway station. Officers from several commands were at the protest to maintain order. An unidentified officer attempted to arrest an unidentified protestor and § 87(2)(b) physically interfered with the arrest. PO Kyle Calenda of the Community Affairs Bureau struck § 87(2)(b) in the head with an Asp. **(Allegation A – Force: substantiated)**. Sgt. Brian Verkay threatened to strike § 87(2)(b) with a baton and Sgt. Verkay pushed him to the ground **(Allegations B – Abuse of authority: exonerated) (Allegation C – Force: exonerated)**. PO Frank Aliberti of the 72nd Precinct pushed unidentified protestors **(Allegation D – Force: exonerated)**. PO John Errico of the 69th Precinct Detective's squad pushed an unidentified protestor **(Allegation E – Force: exonerated)**. Sgt. Keith Hockaday of SRG 4 threatened to strike § 87(2)(b) with a baton **(Allegation F – Abuse of authority: exonerated)**. Sgt. Hockaday and Captain Joseph Taylor of SRG 3 pulled § 87(2)(b) to the ground **(Allegation G and H – Force: exonerated)**. Captain Taylor pulled § 87(2)(b) to the ground by her shirt, causing her shirt to rip open **(Allegation I – Abuse of authority: exonerated)**. Captain Taylor stuck § 87(2)(b) with a baton **(Allegation J – Force: unsubstantiated)**. After handcuffing § 87(2)(b) Captain Taylor did not fix her shirt and left her with her chest exposed **(Allegation K – Discourtesy: substantiated)**. Captain Taylor told § 87(2)(b) referring to § 87(2)(b) “If that’s your daughter you should have raised her better” **(Allegation L – Discourtesy: substantiated)**. An officer struck § 87(2)(b) with a baton **(Allegation M – Force: Officer unidentified)**. Sgt. Kerin Quinn of SRG 4 pushed § 87(2)(b) **(Allegation N – Force: exonerated)**. Sgt. Quinn told § 87(2)(b) to “get the fuck back” **(Allegation O – Discourtesy: exonerated)**. Sgt. Sindy Sanchez deployed her pepper spray against an unidentified protestor **(Allegation P – Force: substantiated)**. At the 1st Precinct stationhouse, § 87(2)(b) repeatedly moved her rear-handcuffed arms from behind her to in front of her. An officer asked § 87(2)(b) “What the fuck are you doing? You know we’re just going to put them in the back right?” **(Allegation Q – Discourtesy: unsubstantiated)**. Officers struck individuals with batons **(Allegation R – Force: officers unidentified)**. An officer tackled an individual to the ground **(Allegation S – Force: officer unidentified)**. Captain Taylor intentionally provided a false official statement **(Allegation T – Untruthful statement: substantiated)**. § 87(2)(g), § 87(4-b)

§ 87(2)(b) was arrested and issued a summons for disorderly conduct **(Board Review 01)**. § 87(2)(b) was arrested and charged with resisting arrest, assault with intent to cause physical injuries, criminal possession of a weapon, unlawful assembly, and disorderly conduct **(Board Review 02)**. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) provided a cellphone video that he found on Twitter, which can be found in IA #36 **(Board Review 04)** and a summary of the footage can be found in IA #124 **(Board Review 05)**. 17 BWC videos were obtained in relation to this incident and a summary of the footage can be found in IA #183 **(Board Review 06)**.

Findings and Recommendations

Allegation A – Force: At the Barclays Center in Brooklyn, Police Officer Kyle Calenda struck § 87(2)(b) with an asp.

PO Michael Lisante's BWC footage, starting at the 2:15 mark of the timestamp visible at the bottom of the screen, shows PO Calenda, PO Lisante, and Chief Maddrey standing on the sidewalk of the plaza behind the Barclay Center train station. At 02:20, an audible gasp is heard from the crowd, though the cause is not captured on camera. PO Calenda, Chief Maddrey, and PO Lisante then enter the plaza and approach a melee. At 02:29, Chief Maddrey grabs § 87(2)(b) who is fighting with another unidentified protestor, by the shoulders and pulls him to the left of the screen and then lets go of him. The unidentified protestor, who is also grabbing § 87(2)(b) and § 87(2)(b) fall to the ground. § 87(2)(b) then gets up and PO Calenda and PO Lisante pursue § 87(2)(b). PO Calenda strikes § 87(2)(b) once in the back. The camera then turns and § 87(2)(b) is out of view of the camera. When § 87(2)(b) comes back into view of the camera, at 02:46, § 87(2)(b) is on the ground (**Board Review 07**).

The cellphone video found on Twitter, at the 00:02 mark of the timestamp visible at the bottom of the screen, captures the same moment but from a different angle. The video shows that PO Calenda strikes § 87(2)(b) twice with his asp. The first strike hits § 87(2)(b) in the upper back. § 87(2)(b) falls to the ground briefly and PO Calenda strikes § 87(2)(b) a second time. This second strike makes contact with § 87(2)(b) in the back of the head. § 87(2)(b) stands up and attempts to run. PO Calenda strikes § 87(2)(b) a third time in the back while PO Lisante grabs § 87(2)(b) waist. § 87(2)(b) breaks free and PO Calenda strikes § 87(2)(b) five additional times in the back. The camera angle is then obscured by the crowd. At the 00:10 mark of the timestamp visible at the bottom of the screen, the camera pans and § 87(2)(b) is seen as he runs away and then falls on his own to the ground. PO Calenda strikes § 87(2)(b) in his leg with an asp. The camera then pans to the left and § 87(2)(b) is no longer in view of the camera (**Board Review 05**).

The investigation identified § 87(2)(b) an independent journalist, as the individual who recorded the cellphone video posted on Twitter. However, § 87(2)(b) refused to provide a statement to the CCRB (**Board Review 15**).

§ 87(2)(b) withdrew his participation in this complaint (**Board Review 08**). Neither § 87(2)(b) nor § 87(2)(b) witnessed the arrest of § 87(2)(b) (**Board Review 09, 10, 11**).

PO Calenda testified that he saw § 87(2)(b) who was approximately 50 feet away, jump on the back of an officer who was affecting an arrest. PO Calenda did not recall if § 87(2)(b) was striking the officer. PO Calenda, PO Lisante, and Chief Maddrey approached. By the time PO Calenda got to the location, § 87(2)(b) had pushed the officers away and got to his feet. § 87(2)(b) attempted to flee and also attempted to kick and strike the officers. § 87(2)(b) also did a "heel kick," which PO Calenda described as jumping to shake off the officers. § 87(2)(b) landed a punch on PO Calenda. PO Calenda did not recall where the punch landed, but he did not sustain any injuries. PO Calenda removed his asp and struck § 87(2)(b) with his asp, aiming for his arms. PO Calenda struck § 87(2)(b) at least twice, stopping after each time to gauge § 87(2)(b) reaction. § 87(2)(b) was moving and attempting to flee, and PO Calenda was unsure where the asp strikes landed – he did not recall if his asp struck § 87(2)(b) head. The last time PO Calenda received training regarding using an asp was at the Police Academy where he was taught to aim for arms. The Academy instructed officers that they should not hit suspects on the head with an asp purposely. § 87(2)(b) ran 10-15 feet and tripped over himself and fell to the ground. PO Calenda and PO Lisante chased after § 87(2)(b) and approximately four additional officers also

approached § 87(2)(b) PO Calenda did not recall how the officers got § 87(2)(b) from his back to his stomach. PO Calenda and other officers restrained him by pulling his arms behind his back and placing him in handcuffs. A sergeant, who's name PO Calenda did not know, took § 87(2)(b) to a Corrections bus. While walking, PO Calenda asked § 87(2)(b) for his name and date of birth for his records, however, § 87(2)(b) ignored PO Calenda. PO Calenda saw that § 87(2)(b) was bleeding from the back of his head but did not know how he sustained the injury (**Board Review 13**).

The TRI prepared for PO Calenda states that an unknown individual was jumping on UMOS and interfering with an arrest. The unknown individual resisted arrest and attempted to flee and that PO Calenda struck the individual with his asp (**Board Review 17**).

None of the officers interviewed in this case, including Chief Monahan, Chief Maddrey, Captain Taylor, Lt. Oetting, Sgt. Sanchez, Sgt. Quinn, Sgt. Hockaday, Sgt. Verkay, PO Miranda, PO Pena, PO Errico and PO Aliberti, testified to witnessing this portion of the incident (**Board Review 18, 19, 20, 21, 22, 23, 24, 25, 26, 27, 34**).

NYPD Patrol Guide, Procedure 221-01 states that officers may use force when it is reasonable to place a person into custody, ensure the safety of a member of service or a third person, or to enforce compliance. When reasonable, officers should first attempt to gain voluntary compliance by using de-escalation techniques (**Board Review 14**). The Police Student's Guide suggests that when using impact techniques such as a baton, officers should strive to strike extremities and larger muscle groups rather than the head, which could result in serious injury or death (**Board Review 28**).

§ 87(2)(b) withdrew his participation in this complaint and thus the investigation could not obtain a statement regarding the circumstances of the asp strikes, the extent of § 87(2)(b) injuries, or medical records. § 87(2)(g)

Furthermore, the video footage shows PO Calenda swinging his asp at § 87(2)(b) upper body multiple times and striking him in the back of his head – § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **substantiated**.

Allegation B – Abuse of Authority: At the Barclays Center in Brooklyn, Sergeant Keith Hockaday threatened § 87(2)(b) with the use of force.

Allegation C – Force: At the Barclays Center in Brooklyn, Sergeant Brian Verkay used physical force against § 87(2)(b)

The cellphone video, at the 00:02 mark of the timestamp visible at the bottom of the screen, shows at the 00:14 mark of the timestamp visible at the bottom of the screen, § 87(2)(b) is seen falling on the ground on top of a bicycle. Sgt. Verkay stands over him holding an asp. An unknown individual wearing green pants, a white shirt, yellow backpack, and a baseball cap grabs § 87(2)(b) by the shoulders and drags him backwards away from Sgt. Verkay. Sgt. Verkay kneels on § 87(2)(b) right side and pins him down. Officers chase the unknown individual further into the crowd out of the view of the camera. At 00:21, § 87(2)(b) attempts to stand up from under Sgt. Verkay and Sgt. Verkay pushes him back down to the ground **(Board Review 05)**.

Sgt. Verkay's BWC footage, at the 02:49 mark of the video player visible at the bottom of the screen, shows § 87(2)(b) run toward Sgt. Hockaday and an unidentified officer with a cocked fist. § 87(2)(b) then strikes the unidentified officer with his fist. Sgt. Hockaday raises his baton toward § 87(2)(b) and § 87(2)(b) backs up. Sgt. Hockaday does not swing his baton. Sgt. Verkay runs at § 87(2)(b) and pushes him, causing § 87(2)(b) to fall over a bicycle. An individual wearing green pants grabs § 87(2)(b) by the shirt and drags him away from Sgt. Verkay. The individual lets go of § 87(2)(b) and Sgt. Verkay, who is holding a baton, grabs § 87(2)(b) attempts to get up and Sgt. Verkay pushes him back to the ground. At 03:09, two box cutters, green and silver, are seen in § 87(2)(b) left pants pocket. Additional officers who are not fully in view of the camera grab § 87(2)(b). Sgt. Verkay yells out, "Got a knife." § 87(2)(b) places his hands behind his back and officers grab his wrists. Sgt. Verkay hands handcuffs to PO Christian Garcia and says, "Just fucking cuff him." PO Garcia places handcuffs on § 87(2)(b) and the officers lift him off the ground **(Board Review 29)**.

A discourtesy allegation was not pled for Sgt. Verkay's statement, "Just fucking cuff him," as the officers were speaking amongst each other and it was not alleged by a civilian.

§ 87(2)(b) withdrew his participation in this complaint **(Board Review 16)**.

§ 87(2)(b), § 87(2)(b) and § 87(2)(b) were all consistent in their testimony that § 87(2)(b) was sitting in his bicycle when Sgt. Verkay grabbed him and pushed him to the ground and handcuffed him. § 87(2)(b) initially testified that she saw officers beat § 87(2)(b) with a baton while he was on the ground. However, during a follow up phone call, § 87(2)(b) stated that she did not see officers strike § 87(2)(b) with a baton **(Board Review 09, 10, 11, 30)**.

NYPD Patrol Guide, Procedure 221-01 states that when appropriate and consistent with personal safety, members of the service will use de-escalation techniques to safely gain voluntary compliance from a subject to reduce or eliminate the necessity to use force. In determining whether the use of force is reasonable, members of service should consider the following: **(Board Review 14)**,

- A. The nature and severity of the crime or circumstances
- B. Actions taken by the subject
- C. The duration of the action
- D. The immediacy of the perceived threat or harm to the subject, members of service, and/or bystanders
- E. Whether the subject is actively resisting custody
- F. Whether the subject is attempting to evade arrest by flight
- G. Number of subjects in comparison to the number of MOS
- H. Size, age, and condition of the subject in comparison to the MOS
- I. Subject's violent history, if known

away from PO Aliberti was two other officers who were attempting to handcuff a male, identified by the investigation as § 87(2)(b) who was resisting. An unidentified female protestor jumped up and down and attempted to pry the officers off of the male attempt to prevent them from arresting the male. PO Aliberti lost sight of the female briefly in the crowd. When he saw her again, she was approximately one foot away from him, and was running toward PO Aliberti. PO Aliberti believed that she was attempting to get to the individual behind him who was behind arrested as she was interfering with an arrest 30 seconds before. There was no indication that the female knew the individual who was being arrested and PO Aliberti could not hear if she was saying anything as it was loud. PO Aliberti shoved her to the side with two open palms to keep her away from the officer who was on the ground arresting the individual. He chose to shove the female as she was already almost passed him and he had to make a quick decision and did not have time to issue a verbal command. PO Aliberti would not have had time to have used any other tactic to prevent her from interfering with the arrest. The female fell to the ground on her buttocks – PO Aliberti did not intend to push the female to the ground. The female then got back up and then ran away and PO Aliberti lost sight of her. PO Aliberti initially testified that he did not push any other individuals. However, after watching the cellphone video, PO Aliberti's recollection was refreshed and he recalled that he pushed the unidentified black female protestor as well. The unidentified black female protestor said that one of her friends was being arrested and attempted to push past. PO Aliberti ordered her to stay back two or three times and the unidentified black female protestor ignored the commands and attempted to push past him. PO Aliberti pushed the woman to stop her from interfering with the arrest or attacking the officers. PO Aliberti believed that the individual who was fighting with the officers and the individual who he was guarding the arrest of were one in the same, and that the individual ran passed him (**Board Review 27**).

NYPD Patrol Guide, Procedure 221-01 states that when appropriate and consistent with personal safety, members of the service will use de-escalation techniques to safely gain voluntary compliance from a subject to reduce or eliminate the necessity to use force. In determining whether the use of force is reasonable, members of service should consider the following: (**Board Review 14**),

- A. The nature and severity of the crime or circumstances
- B. Actions taken by the subject
- C. The duration of the action
- D. The immediacy of the perceived threat or harm to the subject, members of service, and/or bystanders
- E. Whether the subject is actively resisting custody
- F. Whether the subject is attempting to evade arrest by flight
- G. Number of subjects in comparison to the number of MOS
- H. Size, age, and condition of the subject in comparison to the MOS
- I. Subject's violent history, if known
- J. Presence of a hostile crowd or agitators
- K. Subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.

§ 87(2)(g) The cellphone video shows that the unidentified black female protestor attempted to approach § 87(2)(b) as he was being arrested and that PO Aliberti lightly pushed her, causing her to take a step back. Additionally, the video shows that the unidentified white female protestor was interfering with § 87(2)(b) arrest prior to him running away from the officers. § 87(2)(g)

§ 87(2)(b) the cellphone video shows that it was a chaotic situation with the presence of a hostile crowd, and that the unidentified white female

protestor was interfering with § 87(2)(b) arrest prior to § 87(2)(b) running and falling to the ground. § 87(2)(g)

§ 87(2)(g)
it is recommended that **Allegation D** be closed as exonerated.

Allegation E – Force: Police Officer John Errico used physical force against an individual.

The cellphone video shows, at the 00:43 mark of the timestamp visible at the bottom of the screen, an unidentified black male wearing a black shirt and black baseball cap, approach the area where multiple individuals were being arrested. PO Aliberti speaks to the individual, though the words are not audible. At 00:47, the unidentified black male protestor steps quickly toward PO Aliberti. PO Gonzalez holds her baton in front of her horizontally ---holding it with both hands on either end-- as PO Aliberti shouts, “Get back.” PO Errico, a white male wearing a black baseball cap with a red brim and a grey shirt, steps past PO Gonzalez and at 00:55, pushes the unidentified black protestor with both hands in his chest. The unidentified black male protestor steps back as a result. PO Errico then reenters the plaza as other officers set up a line blocking off the plaza (**Board Review 04**).

The investigation was unable to identify the unidentified black male protestor. A search of the NYPD Booking and Arraignment System for arrests made during the incident date and time did not return any arrests for individuals matching the description of the unidentified individual (**Board Review 31**). Stop reports related to this incident returned negative results (**Board Review 32**).

PO Errico testified that after he entered the plaza he saw the unidentified black male protestor, who he described as being a 5’10-11” tall male with an average build. The unidentified black male protestor approached PO Gonzalez, who he described as a 5’3-4” tall thin female SRG officer, and yelled at her. PO Gonzalez attempted to hold the individual back. PO Errico approached and pushed the individual back by pushing his chest with his hands. PO Errico pushed the individual because he was screaming and kept disobeying the officers’ commands by approaching the area after they ordered him to step back (**Board Review 33**). PO Aliberti’s statement was consistent with PO Errico’s statement (**Board Review 27**).

NYPD Patrol Guide, Procedure 221-01 states that when appropriate and consistent with personal safety, members of the service will use de-escalation techniques to safely gain voluntary compliance from a subject to reduce or eliminate the necessity to use force. In determining whether the use of force is reasonable, members of service should consider the following: (**Board Review 14**),

- A. The nature and severity of the crime or circumstances
- B. Actions taken by the subject
- C. The duration of the action
- D. The immediacy of the perceived threat or harm to the subject, members of service, and/or bystanders
- E. Whether the subject is actively resisting custody
- F. Whether the subject is attempting to evade arrest by flight
- G. Number of subjects in comparison to the number of MOS
- H. Size, age, and condition of the subject in comparison to the MOS

- I. Subject's violent history, if known
- J. Presence of a hostile crowd or agitators
- K. Subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.

The cellphone video shows that despite the unidentified black male protestor being given orders to stay back, he stepped aggressively toward PO Aliberti and attempted to enter the plaza. The cellphone video also shows that it was a chaotic situation with the presence of a hostile crowd.

§ 87(2)(g)

it is recommended that Allegation E be closed as **exonerated**.

Allegation F – Abuse of Authority: At the Barclays Center in Brooklyn, Sergeant Keith Hockaday threatened § 87(2)(b) with the use of force.

Allegation G – Force: At the Barclays Center in Brooklyn, Sergeant Keith Hockaday used physical force against § 87(2)(b)

Allegation H – Force: At the Barclays Center in Brooklyn, Captain Joseph Taylor used physical force against § 87(2)(b)

Allegation I – Abuse of Authority: At the Barclays Center in Brooklyn, Captain Joseph Taylor damaged § 87(2)(b) property.

Allegation J – Force: At the Barclays Center in Brooklyn, Captain Joseph Taylor struck § 87(2)(b) with a baton.

The cellphone video, starting at the 00:30 mark of the timestamp visible at the bottom of the screen, shows Sgt. Hockaday, a black male in uniform, approach § 87(2)(b) who is standing on an elevated planter. Sgt. Hockaday raises his baton over his head as if he were preparing to swing it but does not do so. Sgt. Hockaday and Captain Taylor, a white male in uniform with a white shirt, reaching up onto a ledge and grabbing § 87(2)(b) – a Hispanic female wearing a brown floral shirt, by the shirt. At 00:34, § 87(2)(b) swings a bottle and throws liquid at Captain Taylor. Captain Taylor then pulls § 87(2)(b) down from the ledge, ripping her shirt open in the process and exposing a black bra. § 87(2)(b) lands on the ground on her left side. Captain Taylor and Sgt. Hockaday – a black male in uniform, then kneel down and place § 87(2)(b) in handcuffs. The camera then pans away and § 87(2)(b) and the officers are no longer in frame (Board Review 05).

§ 87(2)(b) testified that she was at the protest with her friend, § 87(2)(b) and § 87(2)(b) mother, § 87(2)(b). There were individuals standing on top of the train station and officers chased them off. § 87(2)(b) and § 87(2)(b) decided to stand on the ledge of a planter to get out of the way – the planter was not a prohibited area. Captain Taylor approached § 87(2)(b) and pushed her in her legs but she did not move from the push. § 87(2)(b) attempted to kick Captain Taylor but was unsuccessful. § 87(2)(b) hugged § 87(2)(b). Sgt. Hockaday said, “Come here,” as he grabbed § 87(2)(b) by her right hand and upper arm. Captain Taylor yelled out, “Arrest her” and grabbed § 87(2)(b) by her shirt with both hands and he and Sgt. Hockaday pulled her out of § 87(2)(b) arms and onto the ground, ripping her shirt open and exposing her bra. § 87(2)(b) had an open water bottle in her left hand and threw water at Sgt. Hockaday. § 87(2)(b) landed on the ground on her knees. Captain Taylor, Sgt. Hockaday, and PO Pena grabbed § 87(2)(b) and she attempted to push them off of her and swung her arms in an attempt to strike the officers. § 87(2)(b)

§ 87(2)(b) only managed to strike Captain Taylor in his stomach with the back of her open hand. Captain Taylor pushed § 87(2)(b) in her back causing her to go from a kneeling position into a lying position on her stomach. § 87(2)(b) continued to resist the officers by pulling her arms away from them. The officers did not speak to § 87(2)(b). They said to each other, “Cuff her!” § 87(2)(b) whose head was turned to her right side, saw Captain Taylor grab an item from his tool belt. She could not see what the item was, but shortly after, an officer who she could not see struck her with a baton once in the back of the head and a second time in the back of the neck. § 87(2)(b) did not see the baton that struck her, but the item that struck her felt long, thin, and cylindrical. § 87(2)(b) believed that Captain Taylor struck her with a baton since she saw him reach for his belt right before she was struck. Immediately after the second baton strike, an officer placed § 87(2)(b) in metal handcuffs and Captain Taylor stopped striking her. § 87(2)(b) called the officers pigs and told them that they were going to die in their mother’s arms. § 87(2)(b) did not testify that Sgt. Hockaday threatened to strike her with a baton. § 87(2)(b) testified that she sustained bruising to her arms and wrists; however, she was uncooperative in providing photographs to the CCRB and did not obtain medical treatment (**Board Review 10**).

§ 87(2)(b) and § 87(2)(b) statements were generally consistent with § 87(2)(b) statements. However, § 87(2)(b) did not testify to any officer striking § 87(2)(b) with a baton and § 87(2)(b) did not see § 87(2)(b) be hit with a baton on the ground and believed that the officers only handcuffed her after she was on the ground. Furthermore, while § 87(2)(b) testified to seeing an officer waive a baton at § 87(2)(b) did not provide similar testimony (**Board Review 09, 11, 30**).

Captain Taylor testified that he observed § 87(2)(b) who was standing on a 2-3 foot high planter, spraying an unknown liquid out of a water bottle on police officers. Captain Taylor did not have an indication of what the liquid was, however, he feared it was a chemical. There was nothing objective about the liquid that made Captain Taylor fear that it was a chemical. At some point during the protest, Lt. Frank Gonzalez or SRG sustained a chemical burn to his eyes and face from a liquid that was sprayed on him. However, Captain Taylor was unsure if he knew this information at the time of § 87(2)(b) arrest, or if he learned it later during the day. Captain Taylor did not recall if § 87(2)(b) successfully sprayed any of the officers with the liquid and he was not hit with the liquid. Captain Taylor grabbed § 87(2)(b) by her shirt, as it was the first thing available to him, and pulled her off the ledge. Captain Taylor did not recall saying anything to § 87(2)(b) at this point. Captain Taylor did not recall if § 87(2)(b) shirt ripped as a result. Captain Taylor pulled § 87(2)(b) off the ledge by himself. § 87(2)(b) did not resist being pulled off the ledge. Captain Taylor did not give § 87(2)(b) any commands prior to grabbing her, such as ordering her to step down or place her hands behind her back. He did not give her any commands or a chance to voluntarily comply prior to grabbing her because he considered her to be under arrest for reckless endangerment, as the liquid was putting officers and the public at risk and her actions indicated to that she would not be compliant. Captain Taylor did not want to waste time by asking her to comply given the safety concern regarding spraying the liquid. Captain Taylor did not recall if § 87(2)(b) landed on her feet, on the ground or if she was handcuffed while standing up or laying down. Later in the interview, Captain Taylor said that after § 87(2)(b) was handcuffed, that he stood her up. When the inconsistency was brought to his attention, he said that he misspoke and maintained that he did not recall if she was taken to the ground. Captain Taylor did not recall § 87(2)(b) resisting being placed into handcuffs. Captain Taylor did not recall himself or any other officer

using additional force on § 87(2)(b) while she was on the ground. Captain Taylor did not strike § 87(2)(b) with an asp or a baton. He was not trained to use an asp and did not have a baton on him (**Board Review 19**).

Sgt. Hockaday testified that there were people standing on an elevated planter who were attempting to interfere with the arrest of § 87(2)(b). The individuals threw cups of liquid at the officers. Sgt. Hockaday did not get struck with the liquid. § 87(2)(b) threw liquid at Captain Taylor and struck him in the face with it. Sgt. Hockaday did not know if the liquid was colored or if it was clear but knew that it came from a fast-food style cup. Sgt. Hockaday did not have any thought or concern that the liquid was anything but a beverage. At this point, Sgt. Hockaday has his baton out and resting on his shoulder – he did not hold it up in a threatening manner indicating that he would strike § 87(2)(b). Sgt. Hockaday grabbed § 87(2)(b) with his left hand and grabbed one of § 87(2)(b) hands, and Captain Taylor grabbed her other arm, and the officers guided her down to the ground. Sgt. Hockaday did not recall her shirt becoming ripped open. Sgt. Hockaday did not recall if § 87(2)(b) landed on her feet and then the officers took her to the ground, or if she came down from the planter and hit the ground in a lying down position. Eventually § 87(2)(b) was on the ground on her stomach. Sgt. Hockaday recalled that § 87(2)(b) resisted the officers but could not recall exactly how she resisted. Captain Taylor and the PO Pena pulled § 87(2)(b) arms behind her back and handcuffed her. Sgt. Hockaday did not assist the officers in placing § 87(2)(b) in handcuffs but he observed the process. No officer struck § 87(2)(b) with a baton. Captain Taylor and the officer picked § 87(2)(b) off the ground (**Board Review 23**).

PO Pena testified that he arrived to the location and approached the back side of the subway station where he saw Captain Taylor, who was approximately 10 feet away from the police van, in the process of taking § 87(2)(b) to the ground. PO Pena did not know what technique Captain Taylor used to take § 87(2)(b) to the ground. PO Pena did not see what led up to this moment and did not know why § 87(2)(b) was being arrested. PO Pena approached § 87(2)(b) and Captain Taylor. Captain Taylor was on the ground next to § 87(2)(b). PO Pena did not recall if Captain Taylor had his baton/asp out. Captain Taylor held § 87(2)(b) arms behind her back and PO Pena placed handcuffs on § 87(2)(b). § 87(2)(b) did not resist while on the ground and did not attempt to strike the officers. PO Pena did not see any officer strike § 87(2)(b) with a baton or asp, nor did he do so. No additional force was used on § 87(2)(b) (**Board Review 23**).

NYPD Patrol Guide, Procedure 221-01 states that when appropriate and consistent with personal safety, members of the service will use de-escalation techniques to safely gain voluntary compliance from a subject to reduce or eliminate the necessity to use force. In determining whether the use of force is reasonable, members of service should consider the following: (**Board Review 14**),

- A. The nature and severity of the crime or circumstances
- B. Actions taken by the subject
- C. The duration of the action
- D. The immediacy of the perceived threat or harm to the subject, members of service, and/or bystanders
- E. Whether the subject is actively resisting custody
- F. Whether the subject is attempting to evade arrest by flight
- G. Number of subjects in comparison to the number of MOS
- H. Size, age, and condition of the subject in comparison to the MOS

- I. Subject's violent history, if known
- J. Presence of a hostile crowd or agitators
- K. Subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.

§ 87(2)(g) [REDACTED]
[REDACTED] the cellphone video which shows that the baton was not resting on his shoulder, § 87(2)(g) [REDACTED]
[REDACTED]

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED] the cellphone video shows that there was a presence of a hostile crowd and that arrests were being made in the immediate area. § 87(2)(g) [REDACTED]
[REDACTED]

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] it is recommended that **Allegation F, G, H, and I** be closed as **exonerated**.

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] it is recommended that **Allegation J** be closed as **unsubstantiated**.

Allegation K - At the Barclays Center in Brooklyn, Captain Joseph Taylor acted discourteously toward § 87(2)(b)

§ 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] were consistent in their statements that after Captain Taylor placed § 87(2)(b) [REDACTED] in handcuffs, he walked her through the crowd and placed her onto a NYC Corrections bus without covering her exposed undergarments (**Board Review 09, 10, 11**).

PO Lisante's BWC footage, at the 5:45 mark of the timestamp visible at the bottom of the screen, shows Captain Taylor walking § 87(2)(b) [REDACTED] in the street toward the NYC Corrections bus with her shirt ripped open and her black bra exposed (**Board Review 07**).

An Instagram search returned a photograph of Captain Taylor escorting § 87(2)(b) [REDACTED] while her shirt was open and her bra exposed. The poster was unavailable to the investigation (**Board Review 45**).

Captain Taylor initially did not recall § 87(2)(b) [REDACTED] shirt being open. However, after reviewing PO Lisante's BWC footage, Captain Taylor acknowledged that the video showed him escorting § 87(2)(b) [REDACTED] while her shirt was ripped open but did not recall seeing

recommended that **Allegation L** be closed as **substantiated**.

Allegation M – Force: At the Barclays Center in Brooklyn, an officer used physical force against § 87(2)(b)

Known facts and General Descriptions

§ 87(2)(b) testified that after the officers took § 87(2)(b) she jumped off of the ledge and attempted to “snatch” § 87(2)(b) back. In the process, § 87(2)(b) was hit in the lip. She did not see the individual who hit her nor did she know what body part came into contact with her lip, but believed that it was an officer (**Board Review 09**).

Neither § 87(2)(b) nor § 87(2)(b) testified that an officer struck § 87(2)(b) (**Board Review 10, 11**).

BWC and Video Evidence

Neither the cellphone video nor the BWC footage shows any officer striking § 87(2)(b) (**Board Review 04, 06**).

NYPD Documents Reviewed

A request for TRI reports prepared for § 87(2)(b) returned negative results (**Board Review 37**).

Ranking Officers

Chief Maddrey and Chief Maddrey were interviewed regarding this incident. Both Chief Maddrey and Chief Monahan testified that they did not strike § 87(2)(b) and did not see any officer do so (**Board Review 12, 19**).

Officers Interviewed

Captain Taylor, LT. Oetting, Sgt. Sanchez, Sgt. Quinn, Sgt. Hockaday, Sgt. Verkey, PO Pena, PO Calenda, PO Miranda, PO Errico, and PO Aliberti all denied striking § 87(2)(b) and testified that they did not see any other officer do so. (**Board Review 18, 19, 20, 21, 22, 23, 24, 25, 26, 27, 35**).

Allegation Recitation and Disposition

§ 87(2)(b) did not see the individual that struck her. Furthermore, the use of force was not captured on any of the obtained video footage. § 87(2)(g)

§ 87(2)(b) it is therefore recommended that **Allegation M** be closed as **Officer Unidentified**.

Allegation N – Force: At the Barclays Center in Brooklyn, Sergeant Kerin Quinn used physical force against § 87(2)(b)

Allegation O – At the Barclays Center in Brooklyn, Sergeant Kerin Quinn spoke discourteously to § 87(2)(b)

The cellphone video, at the 00:35 mark of the timestamp visible on the bottom of the screen, shows an officer who is out of view of the camera, push § 87(2)(b) a black teenager with braids who is holding a pink sign, backwards. § 87(2)(b) stumbles but does not fall (**Board Review 05**).

Sgt. Quinn’s BWC footage, starting at the 03:49 mark of the timestamp, visible on the bottom of the screen, shows Sgt. Quinn walking into the plaza. Sgt. Quinn approaches § 87(2)(b) who is standing on top of a planter and holding onto § 87(2)(b) who Captain Taylor is attempting to pull off the ledge. Sgt. Quinn pulls § 87(2)(b) off of the ledge and § 87(2)(b) lands on her feet. Sgt. Quinn then pushes § 87(2)(b) back while saying, “Get the fuck back.” It

is unclear where on § 87(2)(b) body Sgt. Quinn makes contacts (**Board Review 38**).

§ 87(2)(b) testified that after officers pulled § 87(2)(b) off the ledge, she jumped down and yelled at the officers to let § 87(2)(b) go. § 87(2)(b) attempted to approach § 87(2)(b) and Sgt. Quinn pushed her away and ordered her to back up. § 87(2)(b) stumbled backward but did not fall (**Board Review 11**).

Sgt. Quinn testified that she did not recall interacting with § 87(2)(b). However, after reviewing her BWC footage, she testified that her recollection was refreshed. Sgt. Quinn testified that she pulled § 87(2)(b) off the planter in a guided manner and that § 87(2)(b) landed on her feet. She did so because it was a dangerous situation, the individuals were not complying with the orders to disperse. Sgt. Quinn used discourteous language because it was a dangerous and chaotic situation and she was trying to emphasize the seriousness of her command by using profanity. Sgt. Quinn pushed § 87(2)(b) because she was attempting to get her out of the area and away from herself and other officers (**Board Review 22**).

NYPD Patrol Guide, Procedure 221-01 states that when appropriate and consistent with personal safety, members of the service will use de-escalation techniques to safely gain voluntary compliance from a subject to reduce or eliminate the necessity to use force. In determining whether the use of force is reasonable, members of service should consider the following: (**Board Review 14**),

- A. The nature and severity of the crime or circumstances
- B. Actions taken by the subject
- C. The duration of the action
- D. The immediacy of the perceived threat or harm to the subject, members of service, and/or bystanders
- E. Whether the subject is actively resisting custody
- F. Whether the subject is attempting to evade arrest by flight
- G. Number of subjects in comparison to the number of MOS
- H. Size, age, and condition of the subject in comparison to the MOS
- I. Subject's violent history, if known
- J. Presence of a hostile crowd or agitators
- K. Subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.

NYPD Patrol Guide Procedure 203-09 states that police officers must be courteous and respectful when dealing with civilians (**Board Review 34**). Disciplinary Case No. 2017-17005 states that while officers are allowed to use discourteous language during stressful situations, officers are only permitted to do so when scenes are so chaotic that the duty of courteousness and professional behavior should be overridden by the immediate need to maintain order (**Board Review 37**).

The BWC video shows that § 87(2)(b) was interfering with the arrest of § 87(2)(b) by holding onto her. § 87(2)(g)

it is recommended that Allegation N be closed as exonerated.

The video evidence shows that the incident was a chaotic situation. § 87(2)(g)

it is recommended that **Allegation O** be closed as **exonerated**.

Allegation P – Force: At the Barclays Center in Brooklyn, Sergeant Sindy Sanchez used pepper spray against individuals.

The cellphone video, starting at 1:37 mark of the timestamp visible at the bottom of the screen, shows a scuffle at the top left part of the screen – however, it is too far from the camera to tell what is occurring. At 01:38, Sgt. Sanchez deploys her pepper spray, which sprays over the crowd (**Board Review 05**).

Sgt. Sanchez’s BWC footage, starting at the 43:20 mark of the timestamp visible at the bottom of the screen, shows Sgt. Quinn ordering a group of female protestors to leave the plaza. Sgt. Quinn places her open right palm on the back of a black female protestor. The unidentified protestor turns around and pushes Sgt. Quinn’s hand off of her. Sgt. Quinn again puts her hand on the unidentified protestor and the unidentified protestor shoves Sgt. Quinn. Sgt. Quinn shoves the unidentified protestor back at which point the unidentified protestor runs at Sgt. Quinn. Due to the angle of the BWC, it is unclear where the unidentified female protestor strikes Sgt. Quinn. Sgt. Sanchez raises her pepper spray and sprays it at the unidentified protestor who then runs away. Sgt. Sanchez says, “Get the fuck outta here” after the crowd disperses (**Board Review 39**).

Sgt. Sanchez’s statement was consistent with the BWC footage. She testified that a ranking officer with a white shirt, who Sgt. Sanchez did not know, ordered the officers to clear the plaza because the protestors were throwing items, being violent, and setting off fireworks. Sgt. Sanchez and her SRG team attempted to apprehend protestors who were on top of the hill of the subway station and clear the area behind the subway station. Sgt. Sanchez saw Sgt. Quinn order a group of protestors to move back and the group did not move. A black female protestor turned around and punched Sgt. Quinn in the face. Sgt. Quinn did not sustain injuries aside from redness in the area. There was a group of four or five additional females who were standing behind the black female protestor also approached Sgt. Quinn. Sgt. Sanchez feared that the group of females were going to “gang assault” Sgt. Quinn. Before Sgt. Quinn could respond to the female or use any force on her, Sgt. Quinn deployed her pepper spray at the black female in a two second burst from approximately three feet away to stop the black female from further assaulting Sgt. Quinn. Sgt. Sanchez did not recall if she sprayed it directly at the black female or over her head. The pepper spray was effective in stopping the assault as the individuals fled. The officers were unsuccessful in apprehending them. Sgt. Quinn did not recall making the statement, “Get the fuck out of here.” She did not recall using profanity during the incident but stated that it was a stressful moment and it is easy to get caught up “in the moment.” After she reviewed her BWC footage, she acknowledged that she made the statement, “Get the fuck outta here,” but stated that she did not have a recollection of doing so. Sgt. Sanchez believed that she made the statement because she was upset watching Sgt. Quinn getting assaulted, that it was a stressful situation with the number of protestors at the location. The statement was effective in getting the group of females to disperse (**Board Review 21**).

Given that the BWC shows that Sgt. Sanchez made the statement “Get the fuck outta here” after the individuals dispersed and were no longer in the area, and the fact that the statement was not alleged by any civilians, a discourtesy allegation was not pled.

Sgt. Quinn’s statement was consistent with Sgt. Sanchez’s statement. Sgt. Quinn testified that the unidentified female protestor punched her in her left temple (**Board Review 22**).

PO Aliberti, PO Errico, and Sgt. Quinn all testified to being hit with the pepper spray and each officer obtained medical treatment (**Board Review 22, 27, 34**).

NYPD Patrol Guide, Procedure 221-07 states that officers can use pepper spray to gain control of persons who are actively resisting arrest and to establish control of a subject attempting to flee from arrest or custody. Officers are to discharge the pepper spray into the subject's eyes at a minimum distance of three feet. It further advises officers that they are to avoid discharging pepper spray indiscriminately over a large area for disorder control (**Board Review 40**).

NYPD Patrol Guide, Procedure 221-01 states that when appropriate and consistent with personal safety, members of the service will use de-escalation techniques to safely gain voluntary compliance from a subject to reduce or eliminate the necessity to use force. In determining whether the use of force is reasonable, members of service should consider the following: (**Board Review 14**),

- A. The nature and severity of the crime or circumstances
- B. Actions taken by the subject
- C. The duration of the action
- D. The immediacy of the perceived threat or harm to the subject, members of service, and/or bystanders
- E. Whether the subject is actively resisting custody
- F. Whether the subject is attempting to evade arrest by flight
- G. Number of subjects in comparison to the number of MOS
- H. Size, age, and condition of the subject in comparison to the MOS
- I. Subject's violent history, if known
- J. Presence of a hostile crowd or agitators
- K. Subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.

Although Sgt. Sanchez's BWC footage shows that she used the pepper spray in defense of another officer, the cellphone video shows that Sgt. Sanchez deployed the pepper spray indiscriminately over the crowd. § 87(2)(g)

it is recommended that **Allegation P** be closed as **substantiated**.

Allegation Q – Discourtesy: At the 1st Precinct stationhouse, Police Officer Anthony Miranda spoke discourteously to § 87(2)(b)

There is no video evidence of this allegation.

It is undisputed that after § 87(2)(b) was arrested she was transported to the 1 Police Plaza Mass Arrest Processing Center where PO Pena met her. Because § 87(2)(b) was a minor, she was not able to be processed at the location and had to be taken to the 1st Precinct stationhouse. While at 1 Police Plaza, PO Pena met with his coworker, PO Miranda. PO Pena and PO Miranda walked § 87(2)(b) to PO Pena's police car. While in custody, § 87(2)(b) moved her handcuffed arms underneath her legs and to the front of her body.

§ 87(2)(b) testified that she repeatedly moved her handcuffed arms to the front of her body, and that each time PO Pena unhandcuffed her, moved her arms behind her back, and re-handcuffed her. When PO Miranda arrived, he said to § 87(2)(b) "What the fuck are you doing? You know we're just going to put them in the back right?" (**Board Review 10**).

PO Miranda denied making the statement and denied using any form of profanity while speaking with § 87(2)(b) (Board Review 25). PO Pena also denied that PO Miranda used profanity while speaking with § 87(2)(b) (Board Review 26).

§ 87(2)(g)

it is recommended that Allegation Q be closed as unsubstantiated.

Allegation R – Force: At the Barclays Center in Brooklyn, officers struck individuals with batons.

Allegation S – Force: At the Barclays Center in Brooklyn, an officer used physical force against an individual.

Allegation

Known Facts and General Descriptions

§ 87(2)(b) testified that she saw a group of individuals, who she could not describe, running down the hill of the subway station's grassy roof. When the individuals got to the bottom of the hill, approximately 10 uniformed officers, who § 87(2)(b) could not describe, grabbed them and began beating them with batons (Board Review 09).

§ 87(2)(b) testified that as she walked behind the Barclays Center subway station, she saw a group of approximately ten teenagers, who she could not describe, who ran down the grassy hill of the subway station. Officers, who § 87(2)(b) couldn't not describe, grabbed the teenager's shirts and struck them repeatedly with batons in their legs, stomach, and arms (Board Review 11).

§ 87(2)(b) did not testify to seeing officers strike a group of individuals with batons. § 87(2)(b) testified that she saw a white girl with a skateboard who was approximately 13 years old and stood approximately 5'5" tall with shoulder-length pink hair, and had a thin build, who ran down the hill off of the subway station. An officer who § 87(2)(b) described at a 35-year-old white male with black hair in uniform chased the girl and tackled her to the ground. § 87(2)(b) did not see what happened after the girl was tackled as she began watching an individual who was sitting on a bike, identified by the investigation as § 87(2)(b) (Board Review 10).

BWC and Video Evidence:

Neither the cellphone video nor the BWC footage shows officers striking protestors with batons other than what is mentioned above. Additionally, none of the obtained footage shows an officer taking a teenage girl with pink hair to the ground (Board Review 04, 06).

NYPD Documents Reviewed

A search of the NYPD Booking and Arraignment System for arrests made during the incident date and time did not return any arrests for individuals matching the description of the unidentified individual (Board Review 31). Furthermore, without officer or victim names, TRI reports could not be requested.

Ranking Officers

Chief Maddrey and Chief Monahan were both interviewed in relation to this incident. They testified that they were present at the location and did not strike any protestors with batons and did not see any officer do so (Board Review 12, 19).

Officers Interviewed

Captain Taylor, Lt. Oetting, Sgt. Sanchez, Sgt. Quinn, Sgt. Hockaday, Sgt. Verkey, PO Pena, PO Miranda, PO Errico, and PO Aliberti all denied striking any protestors with batons and denied using any additional force on protestors other than what has been described in this report, and testified that they did not see any other officer do so. PO Calenda testified that he did not strike any protestor with a baton or asp besides § 87(2)(b) that he did not use force on any other protestors, and that he did not see any other officer do so (**Board Review Board Review 18, 19, 20, 21, 22, 23, 24, 25, 26, 27, 35**).

§ 87(2)(g)

it is recommended that **Allegations R** and **S** be closed as **Officers Unidentified**.

Allegation T - Captain Joseph Taylor provided a false official statement to the CCRB.

In his CCRB statement, Captain Taylor denied that he made the statement, “If that’s your daughter you should have taught her how to act.” Captain Taylor was shown Det. Rivera’s BWC footage, which at the 16:56 mark of the timestamp visible at the bottom of the screen, shows him making the statement (**Board Review 37**). After reviewing the footage, Captain Taylor acknowledged hearing the statement in the video, but could not identify the voice and again denied that he made the statement (**Board Review 19**).

§ 87(2)(g)

According to Patrol Guide Procedure 203-08, a false official statement is an intentional statement that a member of the service knows to be untrue, which is material to the outcome of an investigation, proceeding, or other matter in connection with which the statement was made. A material fact is defined as a significant fact that a reasonable person would recognize as relevant to, or affecting, the subject matter of the issue at hand, including any foreseeable consequences, or establishment of the elements of some proscribed conduct. It is a fact that is essential to the determination of the issue and the suppression, omission, or alteration of such fact would reasonably result in a different decision or outcome. A material fact may be distinguished from an insignificant, trivial, or unimportant detail (**Board Review 46**).

In DCT Case Number 2016-16097 the court held that in order to prove a false statement, it must be demonstrated that the statement was not only false, but also was not a mere denial of an administrative charge of misconduct. This is in contrast to statements that create a “false description of events” (**Board Review 47**)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation T** be closed as **substantiated**.

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) § 87(2)(b) and § 87(2)(b) have been a party (**Board Review 42**).
- § 87(2)(b)
 -
 -
- Captain Taylor has been a member of service for 21 years and has been a subject in two additional cases, and two allegations, none of which were substantiated. § 87(2)(g)
- Sgt. Hockaday has been a member of service for 15 years and has been a subject in nine additional cases and 17 allegations, none of which were substantiated. § 87(2)(g)
- Sgt. Sanchez has been a member of service for 15 years and has been a subject in three additional cases and five allegations, none of which were substantiated. § 87(2)(g)
- Sgt. Quinn has been a member-of-service for seven years and has been a subject in four additional CCRB complaints and four allegations, two of which were substantiated. § 87(2)(g)
 - Case 201606860 involved substantiated allegations of Discourtesy – word and

Abuse of authority – threat of arrest. The Board recommended instructions and the NYPD imposed instructions.

- Sgt. Verkay has been a member of service for 16 years and has been a subject in seven additional cases and 14 allegations, none of which were substantiated. § 87(2)(g)
- PO Aliberti has been a member of service for five years and has been a subject in two additional cases and two allegations, none of which were substantiated. § 87(2)(g)
- PO Errico has been a member of service for six years and has been a subject in five additional cases and five allegations, none of which were substantiated. § 87(2)(g)
- This is the first CCRB complaint to which PO Calenda, PO Miranda, PO Pena have been a party.

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation.
- As of December 11, 2020, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (**Board Review 43**).

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 06

Investigator: Inv. Thomas Juliano Inv. Thomas Juliano 06/15/2021
Signature Print Title & Name Date

Squad Leader: Jessica Peña IM Jessica Peña 6/16/2021
Signature Print Title & Name Date